

RESOLUTION OF RIGHTS PROCEDURE

Once the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD) have been carried out, the following FACTS have been established:

FIRST: On April 12, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with this Agency against DIGILAB TEAM SL, initially for not having been attended to regarding his right of access. In his complaint, he expressed that he was uncertain about who was the owner of the website ***URL.1 where he filled out a form and exercised his right of access.

His complaint was forwarded both to DIGILAB TEAM, S.L., against whom it was initially directed, and to DIGIMAN ALICANTE, S.L. (hereinafter, the respondent), the company that owns the aforementioned website.

This complaint was declared inadmissible by this Agency with the following conclusion:

“...Once the reasons presented by the respondent, which are in the file, have been analyzed, this Agency considers that the responsible party has addressed the complaint presented. For this reason, in accordance with the provisions of Article 65 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data AGREES to declare the complaint inadmissible.”

SECOND: The complainant, disagreeing with the inadmissibility, filed a motion for reconsideration which, once resolved favorably, gives rise to the current complaint and concludes:

“...Once the motion for reconsideration was forwarded to the respondent, both DIGILAB TEAM, S.L. and DIGIMAN ALICANTE, S.L., to carry out the hearing procedure, these two companies submitted the same written allegations in which they substantially state that both the contact form on the website ***EMAIL.1 and the email ***EMAIL.1 were misconfigured, so neither the budget request made by the complainant nor the subsequent email exercising the complainant's right of access was received, and they indicate that they cannot prove such an extreme, as it would be a diabolical or impossible proof, which consists of attempting to demonstrate a negative and non-existent fact, impossible to prove. However, the respondent has been aware of the request to exercise the right of access of the appellant on at least two occasions throughout this file: in the transfer of the complaint carried out by the AEPD and in the transfer of the motion for reconsideration also carried out by the AEPD, and, however, there is no record that they have responded to it.

It is true that the respondent informs that in the months of February and March 2023 both the contact form on the website ***EMAIL.1 and the email ***EMAIL.1 were misconfigured, so neither the budget request made by the appellant nor the subsequent email exercising the right of access by the appellant was received.

However, the respondent has been informed that a request for access had been submitted within this file, despite which it has not been proven that they responded to the exercise of the appellant's right. Therefore, in this case, it is considered that the respondent has failed to comply with the duty to respond to the request for the exercise of the right of access made by the appellant, as required by Article 12.4 of the LOPDGDD, which establishes:

4. The proof of compliance with the duty to respond to the request for the exercise of their rights made by the affected party shall fall on the responsible party.

For this reason, it is appropriate to uphold the appeal filed and admit the initially inadmissible procedure related to the exercise of the right of access, without entering into an analysis of the remaining allegations contained in the appeal...”

THIRD: Once the motion for reconsideration has been upheld, the complaint, the motion for reconsideration, and the favorable resolution of that motion are forwarded to the respondent again so that, within 15 working days, they may submit the allegations they deem appropriate.

The respondent, in summary, claims to have addressed the right and argues:

“...the right of access has been addressed within this file, as the AEPD has forwarded to the complainant all the information provided in the writings submitted by this party, both on the occasion of

the allegations to the transfer of the complaint made by Mr. A.A.A., as well as on the occasion of the allegations made to the transfer of the motion for reconsideration.

That said with due respect, it does not make much sense to send an email to the complainant indicating that their request to exercise the right of access has not been received when a file has already been initiated in which the information requested by the complainant has been provided in a timely manner, even if at the request of the AEPD.

The AEPD mentions in the cited legal basis that "The proof of compliance with the duty to respond to the request for the exercise of their rights made by the affected party shall fall on the responsible party." This party cannot think of better proof than the different writings submitted by DIGIMAN ALICANTE, S.L. responding to what the complainant is interested in and which are in the present administrative file EXP202306631.

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Therefore, we must conclude that the right of access exercised by the claimant has been correctly addressed by my client when it became aware of its exercise through the procedure initiated by the claimant..."

FOURTH: On January 25, 2024, the claimant is notified of the allegations presented by the respondent so that they may provide their own.

The claimant presents allegations on three different dates, as well as several documents, up to six, which we will summarize and take into account based on their direct relation to the requested right. In summary, the claimant discusses how they reached out to the respondent on numerous occasions through various means without their rights being addressed. And, the claimant concludes by requesting:

"...considering that the director of the AEPD does not act impartially in the proceedings concerning the limited liability companies DIGIMAN ALICANTE SL and DIGILAB TEAM SL, they must refrain from any resolution or pronouncement in which these two companies are involved..."

FIFTH: On February 9, 2024, a document is received from the claimant stating the following:

"...I, A.A.A., of legal age, with ID: ***NIF.1, and acting on my own behalf, submit this document to express my will that all claims and appeals being processed at my initiative be withdrawn..."

SIXTH: Following this document, the claimant presents two new documents in which, in summary, they assert that the respondent claims not to process any of their data, yet their email appears on the respondent's YouTube channel.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing claims submitted by a data subject and investigating, as appropriate, the reasons for such claims.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to address any infringement of the GDPR, including "ordering the controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

On the other hand, regarding the claimant's assertion about the alleged lack of impartiality of the director of this Agency concerning the respondent, it is clarified that none of the grounds for disqualification set forth in Article 23 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, apply, as there is no connection between the director of this Agency and the legal entities affected by this file. Furthermore, none of the reasons related to conflicts of interest provided for in Article 11 of Law 3/2015, of March 30, regulating the exercise of senior positions in the General State Administration, apply in this case.

III

Rights of Individuals in Relation to Personal Data Protection

The rights of individuals in relation to personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

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In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, and the request shall be considered fulfilled (although the data subject may request information regarding the

aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if exercised more than once within a six-month period, unless there is a legitimate reason for doing so. Furthermore, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information regarding the source of the data (if not obtained directly from the data subject), the existence of automated decisions, including profiling, and information regarding transfers of personal data to a third country or to an international organization. The possibility of

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Obtaining a copy of the personal data subject to processing will not negatively affect the rights and freedoms of others.

V

Withdrawal

Article 94 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) establishes the following:

1. Any interested party may withdraw their application or, when not prohibited by the legal system, waive their rights.
2. If the initiation document was submitted by two or more interested parties, the withdrawal or waiver will only affect those who submitted it.
3. Both the withdrawal and the waiver may be made by any means that allows for their documentation, provided that they include the corresponding signatures in accordance with the applicable regulations.
4. The Administration will accept the withdrawal or waiver outright and declare the procedure concluded unless, having been joined by third interested parties, they request its continuation within ten days from the notification of the withdrawal or waiver.
5. If the issue raised by the initiation of the procedure involves general interest or it is deemed appropriate to substantiate it for its definition and clarification, the Administration may limit the effects of the withdrawal or waiver to the interested party and will continue the procedure.

However, after the submission of the general document referred to in FACT FIVE in which the claiming party expressed their intention for all claims and appeals in which they were involved to be withdrawn, several documents related to this procedure were submitted, so it is considered that such intention of withdrawal or waiver is not applicable.

VI

Conclusion

In the case analyzed here, the claimant's intention to withdraw is not clarified, so this claim will be resolved in the ordinary manner.

After reviewing the numerous documents and allegations submitted by both parties since the claim, through the transfer, the appeal for reconsideration, and now in the present rights procedure, it is concluded that the responding party has still not proven that they have responded to the right of access exercised by the claiming party. The responding party is justifying that they have responded to the right of access requested by the claiming party, considering that the response provided by them to the AEPD as a result of the processing of this procedure is sufficient, as the AEPD has transferred the allegations presented by the responding party to the claiming party.

However, since the data controller does not provide a copy of the necessary communication that must

be directed to the claiming party informing them about the decision made regarding the request to exercise rights, whether granting or denying it with justification, it is appropriate to uphold the claim that originated this procedure.

Therefore, the same arguments that led this Agency to uphold the appeal are now the ones that lead us to uphold this claim.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge DIGIMAN ALICANTE, S.L. with NIF B53246906, to send the claiming party a certification within ten business days following the notification of this resolution, addressing the requested right or denying it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to DIGIMAN ALICANTE, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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